

Amendment No. 1 to HB1245

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1401

House Bill No. 1245*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) The Tennessee advisory commission on intergovernmental relations (TACIR) shall study:

(1) The current structure of licensing and oversight mechanisms for residential facilities licensed by, approved by, operated by, or contracted with the department of children's services or a juvenile court for placement of juveniles detained prior to an adjudicatory hearing or who have been adjudicated delinquent and committed to the custody of the department of children's services;

(2) Licensing and oversight models used by other states to ensure compliance, safety, and adequacy of services for juvenile offenders in residential facilities;

(3) Licensing and oversight models used by other state agencies within this state to ensure compliance, safety, and adequacy of services in other types of residential facilities, such as prisons and jails, mental health facilities, and facilities for persons with intellectual and developmental disabilities; and

(4) Opportunities for improvement in this state's licensing and oversight mechanisms for residential facilities housing and treating pre- and post-adjudication juvenile offenders.

(b) As used in this act:

(1) "Licensing and oversight" include, but are not limited to, formal licensing processes and regulations; facility inspections; compliance reviews; complaint, investigatory, and enforcement mechanisms; as well as youth, family, and community input processes, but do not include any information that is child-specific or that could identify a specific child or family; and

(2) "Residential facilities" include local juvenile detention centers and other facilities for the housing and treatment of juveniles detained prior to an adjudicatory hearing, as well as facilities for the housing and treatment of juvenile offenders who have been adjudicated delinquent and committed to the custody of the department of children's services, including temporary and transitional placements, assessment centers, shelters, out-of-state placements, and any other location where juvenile offenders in custody of the department reside while in state custody, but does not include foster homes or trial home visits.

(c) TACIR may request information and input from the department of children's services, including their facilities and private provider facilities, the department of mental health and substance abuse services, the department of education, and other appropriate state and local governmental entities, as necessary. Each such entity must comply with TACIR's request, subject to existing state and federal confidentiality laws. Failure of any entity to comply shall be reported in TACIR's findings. The study must be conducted from TACIR's existing resources.

(d) By no later than January 31, 2027, TACIR shall report its findings to each member of the general assembly and shall provide a copy of the report to the legislative librarian. The report may be delivered electronically.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.